

Form No: HCJD/C-121

**ORDER SHEET**

**IN THE LAHORE HIGH COURT, LAHORE**

**(JUDICIAL DEPARTMENT)**

**Case No.**      **Crl. Misc. No.**78626-B/2024.

|                                |                               |                                                                                     |
|--------------------------------|-------------------------------|-------------------------------------------------------------------------------------|
| <i>Jannat Gull.</i>            | <b>Versus</b>                 | <i>The State etc.</i>                                                               |
| Sr.No.of order/<br>Proceedings | Date of order/<br>Proceedings | Order with signatures of Judge, and that of parties or<br>counsel, where necessary. |

20.02.2025.      Ch. Saeed Ahmad Cheema, Advocate for the  
petitioner.  
Rana Muhammad Imran Anjum, DPG with Khalil SI.  
Ms. Shama Ilyas, Child Protection Officer (Legal).

Through this petition under Section 497 Cr.P.C.,  
petitioner seeks post arrest bail in case FIR bearing No.2724  
dated 28.11.2024 registered under Sections 328A PPC read  
with section 38 of the Punjab Destitute and Neglected  
Children Act 2004 at Police Station Hajipura, District Sialkot.

2.    On the complaint of Nazar Muhammad, Child Protection  
Officer, Muhammad Suleman (child) son of Jannat Gull  
(present petitioner) was taken into safe custody by Child  
Protection & Welfare Bureau, Sialkot on 11.11.2024 at 4:30  
p.m. by the order of Court from whose possession narcotic  
stood recovered which according to the child was handed over  
to him by his cousin Musharaf Khan. Being of tender age,  
minor was discharged and was handed over to Child  
Protection Bureau. Due to slackness in the welfare of minor  
and by using him for transportation of narcotic, being father  
of child, petitioner namely Jannat Gull has violated the  
provision of section 328A Pakistan Penal Code 1860 (PPC)  
read with section 38 of the Punjab Destitute and Neglected  
Children Act 2004 (PDNCA 2004); hence, this FIR.

3.    Learned counsel for the petitioner contends that both the  
offences fall outside the ambit of prohibitory clause of section  
497 Cr.P.C., entitling the petitioner to seek concession of bail  
as a matter of right. On the other hand, learned DPG and the

Child Protection Officer (Legal) opposed the bail on the ground that offence ‘cruelty to child’ was inserted in the statute book in year 2016 to curb the heinous offence against the children in order to save their childhood and future prospectives, and at least it is not expected from a father to commit such offence against his own son, which has tarnished the very fabric of the society, therefore, such elements do not deserve any leniency so as to seek concession of bail.

4. Heard. Record perused.

5. Being authorized under section 24 of PDNCA 2004, custody of Suleman (child) by Child Protection Officer was regulated by the Child Protection Court under section 26 of the same Act for his admission in Child Protection Unit. Sensitivity of the matter requires a little more attention by this Court to overview the laws applicable on the subject. Pakistan Penal Code 1860 (PPC) accommodates following two penal provisions to confront the allegations contained in FIR, which are as under;

**328. Exposure and abandonment of child under twelve years by parent or person having care of it:**

Whoever being the father or mother of a child under the age of twelve years, or having the care of such child, shall expose or leave such child in any place with the intention of wholly abandoning such child, shall be **punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.**

**Explanation.** This section is not intended to prevent the trial of the offender for qatl-i-amd or qatl-i-shibh-i-amd or qatl-bis-sabab, as the case may be, if the child dies in consequence of the exposure.

**328 A. Cruelty to a child.** - Whoever willfully assaults, ill-treats, neglects, abandons or does an act of omission or commission, that results in or have potential to harm or injure the child by causing physical or psychological injury to him shall be punished with **imprisonment of either description for a term which shall not be less than one year and may extend up to three years.** or with fine which shall not be less than twenty-five thousand rupees and may extend up to fifty thousand rupees, or with both."

Section 328 PPC shall only be applicable if the child is under 12 years of age, whereas Section 328A PPC, picks up child

of every age under 18 years. Both the offences are cognizable yet offence under section 328 is non-bailable and 328A bailable as per second schedule of Cr.P.C. Section 328 PPC is limited to a situation when father or mother, or any person having care of such child, exposes or leaves such child in any place with the intention of wholly abandoning such child. This section is verbatim of original section 317 of PPC, which is as under;

**317. Exposure and abandonment of child under twelve years, by parent or person having care of it.**--Whoever being the father or mother of a child under the age of twelve years, or having the care of such child, shall expose or leave such child in any place with the intention of wholly abandoning such child, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

**Explanation.**--This section is not intended to prevent the trial of the offender for murder or culpable homicide, as the case may be, if the child dies in consequence of the exposure.

Whereas Section 328A PPC inserted later in year 2016 though accommodates the act of abandoning the child yet it is wider in scope so as to cover assault, ill-treatment, neglect, or an act of omission or commission, that results in or have potential to harm or injure the child by causing physical or psychological injury to him. Thus, stands at different conceptual pedestal than to section 328 PPC. Its applicability and legal requirement of situations has well been explained by the Supreme Court of Pakistan in a case reported as “Raja KHURRAM ALI KHAN and 2 others Versus TAYYABA BIBI and another” (PLD 2020 Supreme Court 146).

6. In the case situation, the child was having narcotics in his possession that could be result of abandonment, ill-treatment, neglect, or an act of omission or commission by the Father (petitioner) which could be the factors potential to harm or injure the child physically or psychologically so as to attract Section 328 or 328A PPC yet does not specifically deal with

the situation; however, PDNCA 2004 steps ahead to pronounce it a particular offence, which is as under;

**38. Permitting child to enter places where liquor or narcotic drugs are sold. – Whoever–**

- (i) takes a child to any place where an intoxicant is served or consumed; or
- (ii) being the proprietor, owner or a person in charge of such place, permits a child to enter such place; or
- (iii) causes or procures a child to go to such place; shall be punished with **imprisonment for a term which may extend to five years** but which shall not be less than three months and with fine which may extend to one hundred thousand rupees but which shall not be less than twenty five thousand rupees.

Section 42 of PDNCA 2004 makes the above offence cognizable and non-bailable. In Islam, adulthood (or “Bulugh”) is typically determined by the age at which a person reaches puberty, which varies among individuals. The Prophet (ﷺ) emphasized that a child is considered to have reached maturity when they experience signs of puberty, such as:

- i. The onset of menstruation for girls.
- ii. The growth of pubic hair or the production of semen for boys.

Once a person reaches puberty, they are no longer considered a “child” in the Islamic sense, as they are then expected to fulfill the religious obligations such as prayer, fasting, and other duties, yet two laws cited above define the child as one who is under 18 years of age. Section 299 (a) PPC says, an ‘adult’ means a person who has attained the age of 18 years which means under 18 would be a child. PDNCA 2004 under section 3 (1) (e) says that “child” means a natural person who has not attained the age of eighteen years. Thus, above offence shall also be attracted against the petitioner.

7. Another vice which is plagued in our society, seems beyond the control of government is “putting the child in begging” which is a worst kind of ‘cruelty to child’. No concrete steps are taken nor coercive measures are adopted to

curb this vice though a legislative support is available specifically and exhaustively in PDNCA 2004 & the Punjab Vagrancy Ordinance 1958. Section 3(1)(a) of PDNCA 2004 says “begging” means;

- (i) soliciting or receiving alms in a public or private place;
- (ii) exposing or exhibiting any sore, wound or deformity of an influenced child or a child under coercion at any place for purposes of seeking alms or otherwise; and]
- (iii) having no visible or known means of subsistence and found wandering about with the ostensible object of soliciting or receiving alms;

Section 2 (g) of the Punjab Vagrancy Ordinance 1958 says “vagrant” means a person who—

- (i) solicits or receives alms in a public place;
- (ii) exposes or exhibits any sore, wound, injury, deformity or disease in a public place for the purpose of soliciting or receiving alms;
- (iii) allows himself to be used as an exhibit for the purpose of soliciting or receiving alms;
- (iv) enters on any private premises without the invitation of the occupier for the purpose of soliciting or receiving alms;

Giving a child in employment for ‘begging’ is an offence under PDNCA 2004, which is as under;

**36. Employing for begging.**— If a person employs a child for begging or causes a child to beg or, having the custody, charge or care of a child, connives at or encourages employment of the child for begging or uses a child, connives at or encourages employment of the child, for begging, he shall be punished with imprisonment for a term which may extend to five years but which shall not be less than three months and with fine which may extend to one hundred thousand rupees but which shall not be less than ten thousand rupees.

And vagrancy is also an offence under the Punjab Vagrancy Ordinance 1958, as under

**10. Punishment for employing or causing persons to ask for alms.** —Whoever employs or causes any person to solicit or receive alms or uses a person as an exhibit for the purpose of soliciting or receiving alms or being the guardian of a child connives at or encourages the employment or the causing of the child to solicit or receive alms shall be **punished with imprisonment of either description for a term which may extend to one year or with fine or with both.**

8. Before the matter be looked further, let's see what is the definition of 'destitute or neglected child', situations are listed in section 3(1) (k) of PDNCA 2004 as under;

- (k) "destitute and neglected child"** means a child who—
- (i) is found begging; or
  - (ii) is found without having any home or settled place of abode and without any ostensible means of subsistence; or
  - (iii) has a parent or guardian who is unfit or incapacitated to exercise control over the child; or
  - (iv) lives in brothel or with a prostitute or frequently visits any place being used for the purpose of prostitution or is found to associate with any prostitute or any other person who leads an immoral or depraved life; or
  - (v) is being or is likely to be abused or exploited for immoral or illegal purpose or unconscionable gain; or
  - (vi) is beyond the parental control; or
  - (vii) has lost his parents or one of the parents and has no adequate source of income; or
  - (viii)** is victim of an offence punishable under this Act or any other law for the time being in force and his parent or guardian is convicted or accused for the commission of such offence; or
  - (ix) is at risk owing to disability or child labour; or
  - (x) is imprisoned with the mother or is born in a jail; or
  - (xi) is abandoned by the parents or guardian;

Clauses (v) & (viii) as cited above are relevant in this case.

9. Two enactments are dealing with the offence as described in the FIR, yet Child Protection Court being creation of special law shall conduct the trial of such offence primarily under section 38 of PDNCA 2004 but depending upon the facts can also frame charge jointly for offence under section 328 or 328A PPC as it deems appropriate. Though section 23 (3) of PDNCA 2004 says that provisions of the Code and the Qanun-e-Shahadat Order, 1984 (P.O. No. X of 1984), unless otherwise expressly provided by this Act or the rules, shall not apply to proceedings before the Court but the Code of Criminal Procedure 1898 was made applicable through section 43 of said Act, that all offences under this part shall be investigated, tried and punished in accordance with the procedure prescribed in the Code. Part means Part-VIII of PDNCA 2004 dealing with Special Offences Relating to Children. (Ss. 34 to 41).

10. Islam encourages love and compassion toward children. The Prophet Muhammad (ﷺ) demonstrated immense love for children and considered showing affection as a sign of kindness.

“He is not one of us who does not have mercy on young children...”

(Hadith – Sahih Muslim)

Allah Almighty in Surah At-Tahrim (66:6) says

“O you who have believed, protect yourselves and your families from a Fire whose fuel is people and stones.”

This verse emphasizes the responsibility of parents to protect their children not only from physical harm but also from spiritual harm, guiding them to live a life that pleases Allah.

11. In the light of above discussion, no malafide or ill will of child protection officer is spurred out from the record to lodge the present FIR against the petitioner. It is duty of the State to protect the vulnerable class of the society and jealously guard their rights through concrete and coercive measures to ensure right to liberty, life, well-being and their education. Sufficient material is available to connect the petitioner with commission of offences (under section 328 or 328A PPC, and section 38 of PDNCA 2004) and claim, that offences which do not fall within the prohibitory clause of section 497 Cr.P.C., must be responded with bail, cannot be acceded to when case falls in exceptions as held in cases reported as *“ABDUL REHMAN Versus THE STATE and another”* (2022 SCMR 526); *“UMER KHAN Versus THE STATE and another”* (2022 SCMR 216); *“Haji MUHAMMAD NAZIR and others Versus THE STATE”* (2008 SCMR 807); *“MUHAMMAD SIDDIQUE Versus IMTIAZ BEGUM and 2 others”* (2002 SCMR 442), and particularly when as per section 23(2) PDNCA 2004, Children Protection Court is required to finally decide a case within one month from the date of production of a child before it. Said court while dealing with offence under section 328A PPC shall of course keep abreast with guidelines



expounded by the Supreme Court of Pakistan in a case reported as “Raja KHURRAM ALI KHAN and 2 others Versus TAYYABA BIBI and another” (PLD 2020 Supreme Court 146).

12. In the light of above discussion, no ‘reasonable grounds’ as contemplated in section 497 (2) Cr.P.C. are available for concession of bail at this stage of the proceedings, therefore, by relying upon the case reported as “Nehal vs. The State and another” (2020 SCMR 2053), this petition is **dismissed**.

(MUHAMMAD AMJAD RAFIQ)  
JUDGE

Approved for Reporting

Judge

Signed on \_\_\_\_\_  
Gulzar\*